

## LEASE AGREEMENT

### KEY PROVISIONS SUMMARY

#### Directions

- Change any of the text that is in Key Provision Summary or red/blue text. Do NOT touch grey boxes
- Ctrl + A to select ALL then F9 to Update links after you make a change and want to see it reflected
- To add “bookmark” go to Insert Menu, name Bookmark (start with Tx\_)
- To add “Cross reference” go to Insert Menu, cross reference, choose bookmark
- To add “hyperlink” Ctrl + K then choose bookmark
- Make sure you paste the excel table into the “picture field as image”
- Ctrl + A to select ALL then Ctrl + Shift + F9 to BREAK ALL LINKS (CF & HYPERLINKS) before sending for redline
- Developer Menu, Visual Basic, Module 1, Hit Play button to BREAK only the CROSS REFERENCES
- Fix Property Management %?

|                          |                                                                                                                                                                                                                                                            |                                                                                                       |
|--------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------|
| Property                 | 114 Central Ave (also known as 102-104 Quimby St), Westfield, NJ 07090. (#Property)                                                                                                                                                                        |                                                                                                       |
| Lease Execution Date:    | The date this Lease is executed by both parties which is: _____. (#Signature Date)                                                                                                                                                                         |                                                                                                       |
| Landlord:                | MARION STREET 114 LLC (#Landlord)                                                                                                                                                                                                                          |                                                                                                       |
| Tenant:                  | CHEZ ALICE (#Tenant)                                                                                                                                                                                                                                       |                                                                                                       |
| Premises:                | One (1) Ground Floor Retail (hereinafter collectively referred to as “the store”) in a commercial building (hereinafter referred to as “the building”) (#Premises)                                                                                         |                                                                                                       |
| Premises Sqft:           | Approximately 2423 Total Gross Sq Feet (#SqaureFeet)                                                                                                                                                                                                       |                                                                                                       |
| Tenant Share of Property | Tenant’s Share of the Property being 29.70% (#Share_Property)                                                                                                                                                                                              |                                                                                                       |
| Tenant Share of Floor    | Tenant’s Share of the Floor being 50.00%                                                                                                                                                                                                                   |                                                                                                       |
| Tenant Share of Premises | Tenant’s Share of the Premises being 100.00% (#Share_Premises)                                                                                                                                                                                             |                                                                                                       |
| Permitted Use            | The Premises are to be used and occupied only and for no other purpose than the operation of a <u>ARTISNAL BAKERY</u> , with a commercial kitchen offering, limited seating, take-out and delivery of both prepared food and bakery items. (#PermittedUse) |                                                                                                       |
| Notice Addresses         | Landlord: (#Landlord)<br>MARION STREET 114 LLC<br>Attn: Addison Sollog<br>PO Box 26<br>Short Hills, New Jersey 07078<br>Emails:<br>asollog@gmail.com;<br>richard.b.angel@gmail.com;<br>jason.forster@proventusproperties.com                               | Tenant: (#Tenant)<br>CHEZ ALICE<br>Attn: xxxx<br>xxxxxx<br>xxxxxx, New Jersey xxxx<br>Emails:xxxx@xxx |
| Lease Type               | Triple Net Lease (NNN), see details below (#LeaseType)                                                                                                                                                                                                     |                                                                                                       |
| Lease Commencement Date  | The date in which the Premises are delivered to the Tenant in (“Lease Delivery Condition”), which date is anticipated to be on or around August 1 <sup>st</sup> 2026; see details below (#Lease Commencement Dt)                                           |                                                                                                       |
| Lease Delivery Condition | Premises are delivered to Tenant vacant and broom-clean, and free of any liens or Encumbrances ; see details below (#Delivery Condition)                                                                                                                   |                                                                                                       |
| Rent Commencement Date   | The Rent Commencement Date shall be the earlier of: (i) Tenant’s opening for business or (ii) one hundred fifty (150) days after Lease Commencement Date. For                                                                                              |                                                                                                       |

|                       | the purposes of this Lease, the “Rent Commencement Date” shall be approximately on or about February 1st, 2027; see details below ( <a href="#">#Rent Commencement Dt</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |               |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
|-----------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------|----------------|---------------|--------|--------------|---------------|--------|--------------|---------------|--------|--------------|---------------|--------|--------------|---------------|--------|--------------|---------------|--------|--------------|---------------|----------|----------------|---------------|--------|--------------|---------------|--------|--------------|---------------|---------|--------------|---------------|--------------|--------------|---------------|--------|-----|-----|
| Permit Period         | Tenant shall have ninety (90) days from Lease Execution Date to verify whether they can obtain a seating variance that will allow for seating of up to thirty (30) people in the leased premises. Should the tenant not be able to obtain the variance by this deadline, the Tennat may elect to terminate the lease and receive a full refund of all security deposits paid less a \$5,000.00 penalty.; see details below ( <a href="#">#Permit Period</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |               |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Lease Expiration Date | This Lease shall expire at Midnight at the end of the last day of the last full calendar month after a period of time equal to the (“Lease Term”) and following the Rent Commencement Date. The Expiration Date is anticipated to be on or about January 31, 2037; see details below ( <a href="#">#Expiration Dt</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |               |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Lease Term            | One Hundred Twenty-Five (125) Months from Lease Commencement Date; see details below ( <a href="#">#Lease Term</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |               |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Base Rent             | <p>Base Rent Table:</p> <table><tr><th>Term</th><th>Monthly Amount</th><th>Annual Amount</th></tr><tr><td>Year 1</td><td>\$ 10,903.50</td><td>\$ 130,842.00</td></tr><tr><td>Year 2</td><td>\$ 11,121.57</td><td>\$ 133,458.84</td></tr><tr><td>Year 3</td><td>\$ 11,344.00</td><td>\$ 136,128.02</td></tr><tr><td>Year 4</td><td>\$ 11,570.88</td><td>\$ 138,850.58</td></tr><tr><td>Year 5</td><td>\$ 11,802.30</td><td>\$ 141,627.59</td></tr><tr><td>Year 6</td><td>\$ 12,038.35</td><td>\$ 144,460.14</td></tr><tr><td>Year 7</td><td>\$ 12,279.11</td><td>\$ 147,349.34</td></tr><tr><td>Year 8</td><td>\$ 12,524.69</td><td>\$ 150,296.33</td></tr><tr><td>Year 9</td><td>\$ 12,775.19</td><td>\$ 153,302.26</td></tr><tr><td>Year 10</td><td>\$ 13,030.69</td><td>\$ 156,368.30</td></tr><tr><td>Mths 121-125</td><td>\$ 13,291.31</td><td>\$ 159,495.67</td></tr></table> <p>Table End<br/>(<a href="#">#Base Rent</a>)</p>                                                                                 | Term          | Monthly Amount | Annual Amount | Year 1 | \$ 10,903.50 | \$ 130,842.00 | Year 2 | \$ 11,121.57 | \$ 133,458.84 | Year 3 | \$ 11,344.00 | \$ 136,128.02 | Year 4 | \$ 11,570.88 | \$ 138,850.58 | Year 5 | \$ 11,802.30 | \$ 141,627.59 | Year 6 | \$ 12,038.35 | \$ 144,460.14 | Year 7   | \$ 12,279.11   | \$ 147,349.34 | Year 8 | \$ 12,524.69 | \$ 150,296.33 | Year 9 | \$ 12,775.19 | \$ 153,302.26 | Year 10 | \$ 13,030.69 | \$ 156,368.30 | Mths 121-125 | \$ 13,291.31 | \$ 159,495.67 |        |     |     |
| Term                  | Monthly Amount                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Annual Amount |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 1                | \$ 10,903.50                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | \$ 130,842.00 |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 2                | \$ 11,121.57                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | \$ 133,458.84 |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 3                | \$ 11,344.00                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | \$ 136,128.02 |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 4                | \$ 11,570.88                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | \$ 138,850.58 |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 5                | \$ 11,802.30                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | \$ 141,627.59 |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 6                | \$ 12,038.35                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | \$ 144,460.14 |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 7                | \$ 12,279.11                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | \$ 147,349.34 |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 8                | \$ 12,524.69                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | \$ 150,296.33 |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 9                | \$ 12,775.19                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | \$ 153,302.26 |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 10               | \$ 13,030.69                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | \$ 156,368.30 |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Mths 121-125          | \$ 13,291.31                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | \$ 159,495.67 |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Additional Rent       | Tenant shall pay an estimated monthly installment of Additional Rent during the first Lease Year in the amount of \$3,025.00, subject to section 5.1 below ( <a href="#">#Additional Rent</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |               |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Option Period(s)      | <p>Tenant may extend the Lease for two (2) additional terms of sixty (60) months each (each, an “Option Term”), see details below</p> <p>First Option Term: Fair Market Value</p> <p>Second Option Term: Fair Market Value</p> <table><tr><th>Option 1</th><th>Monthly Amount</th><th>Annual Amount</th></tr><tr><td>Year 1</td><td>TBD</td><td>FMV</td></tr><tr><td>Year 2</td><td>TBD</td><td>FMV</td></tr><tr><td>Year 3</td><td>TBD</td><td>FMV</td></tr><tr><td>Year 4</td><td>TBD</td><td>FMV</td></tr><tr><td>Year 5</td><td>TBD</td><td>FMV</td></tr><tr><td></td><td></td><td></td></tr><tr><th>Option 2</th><th>Monthly Amount</th><th>Annual Amount</th></tr><tr><td>Year 1</td><td>TBD</td><td>FMV</td></tr><tr><td>Year 2</td><td>TBD</td><td>FMV</td></tr><tr><td>Year 3</td><td>TBD</td><td>FMV</td></tr><tr><td>Year 4</td><td>TBD</td><td>FMV</td></tr><tr><td>Year 5</td><td>TBD</td><td>FMV</td></tr></table> <p><b>DELETE TABLE</b></p> <p>Table End<br/>(<a href="#">#Options to Renew</a>)</p> | Option 1      | Monthly Amount | Annual Amount | Year 1 | TBD          | FMV           | Year 2 | TBD          | FMV           | Year 3 | TBD          | FMV           | Year 4 | TBD          | FMV           | Year 5 | TBD          | FMV           |        |              |               | Option 2 | Monthly Amount | Annual Amount | Year 1 | TBD          | FMV           | Year 2 | TBD          | FMV           | Year 3  | TBD          | FMV           | Year 4       | TBD          | FMV           | Year 5 | TBD | FMV |
| Option 1              | Monthly Amount                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Annual Amount |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 1                | TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | FMV           |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 2                | TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | FMV           |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 3                | TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | FMV           |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 4                | TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | FMV           |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 5                | TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | FMV           |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
|                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |               |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Option 2              | Monthly Amount                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | Annual Amount |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 1                | TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | FMV           |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 2                | TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | FMV           |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 3                | TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | FMV           |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 4                | TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | FMV           |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Year 5                | TBD                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | FMV           |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |
| Option to Cancel      | During the eighty-third (83 <sup>rd</sup> ) month of the lease following the Lease Commencement Date, Tenant has the one-time option to provide the Landlord a one-hundred eighty (180) day written cancellation notice, whereas the tenant will be cancelling the lease and be responsible for the rent and additional rent for the                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |               |                |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |        |              |               |          |                |               |        |              |               |        |              |               |         |              |               |              |              |               |        |     |     |

|                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |  |  |  |
|------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--|--|--|
|                                                | remainder of such days through the completion of <b>eighty-ninth (89<sup>th</sup>) month</b> of the lease and may vacate the space. As long as the space is delivered in broom clean condition, and in accordance with this lease, there will be no penalty. If there is no notice received by the landlord as described above, it is assumed the lease will continue through the remainder of the lease term as outlined in this document; see details below ( <a href="#">#Option to Cancel</a> )                                                                                                                                                                                                                   |  |  |  |  |
| Utility and Service Contracts                  | Utility and Service Contracts are to be directly established and paid for by tenant include but not limited to: hot and cold water (American Water), electricity (JCP&L), gas (PSEG). All other service accounts and contracts to be established by landlord but to be reimbursed by tenant through the CAM reconciliation process, however Landlord reserves the right to require tenant to directly contract with a preferred vendor for any building service where applicable (e.g Waste Removal; see details below. ( <a href="#">#Utilities</a> )                                                                                                                                                                |  |  |  |  |
| Specific Building Services                     | Garbage                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |  |  |  |
|                                                | Snow and Ice Removal                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |  |  |  |
|                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |  |  |  |
|                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |  |  |  |
| Lease Commencement Date Deadline               | Landlord shall deliver the Premises in such condition no later than ninety (120) days after the Execution Date; see details below ( <a href="#">#Delivery Deadline</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |  |  |  |
| Commencement Date Deadline Breach              | Tenant's sole and exclusive options are either Lease Termination or Rent credit; see details below ( <a href="#">#Delivery Deadline Breach</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |  |  |  |
| Inspection Period                              | Is Not Applicable in this Lease; see details below ( <a href="#">#Inspection Period</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |  |  |  |
| Good Guy Clause                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |  |  |  |
| Parking                                        | There is parking behind the building which may be used by customers and invitees of the tenant on a non-exclusive basis ( <b>Attached Exhibit "E"</b> ). Landlord reserves the right to designate up to 10 parking spots for a specific tenant should it choose. Landlord and Tenant acknowledge that there is an access easement on the leased property through the ingress and egress driveways that allows the adjacent property visitors (44 South Street) to park in 4 designated parking spots along the South/East property line as per the attached site plan that will not change the current amount of parking spots designated to this building; see additional details below ( <a href="#">#Parking</a> ) |  |  |  |  |
|                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |  |  |  |
| Security Deposit                               | Tenant shall deliver to Landlord a Security Deposit in the amount of \$21,807.00, representing two (2) months ("The Month Multiplier") of the Base Rent for the first lease year. ( <a href="#">#SecurityDeposit</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |  |  |  |
| Broker(s)                                      | Patrick Dintrone of Newmark and Jason Forster of Proventus Properties; see details below ( <a href="#">#Brokers Commission</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |  |  |  |
| Landlord's Rent Payment ACH Payment details    | ACH Payments<br>Pay to: Marion Street 114 LLC<br>Routing Number:021000021<br>Account Number:2906230973                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  |  |  |  |
| Landlord Work                                  | Guidelines for Landlord Work. ( <a href="#">#Landlord Work Guidelines</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  |  |  |  |
| Tenant Work                                    | Guidelines for Tenant Work. ( <a href="#">#Tenant Work Guidelines</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  |  |  |  |
| Landlord Contribution to Tenant Fit-Up Expense | Landlord agrees to contribute a Tenant Improvement Allowance of \$48,460 toward Tenant fit-out and building systems. The allowance shall be paid in three equal tranches at three (3), six (6), and nine (9) months after Lease Commencement Date, provided Landlord receives lien waivers and invoices totaling at least the tranche amount and Tenant is open for business; see detail below ( <a href="#">#Landlord TIContribution</a> )                                                                                                                                                                                                                                                                           |  |  |  |  |
| Exhibits                                       | Exhibit A – Floor Plan ( <a href="#">#Floorplan</a> )                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |  |  |  |

|  |                                                                                                                                                                                             |
|--|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|  | Exhibit B- Site Plan (#SitePlan)<br>Exhibit C: Landlord Work Itemized (#Landlord Work Itemized)<br>Exhibit D: Tenant Work Itemized (#Tenant Work Itemized)<br>Exhibit E: Parking (#Parking) |
|--|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

Remove Option to cancel?

Good Guy

4.2 exclusive use

Cap non controllable expenses?

Options void if we cell

Add table for snow, garbage utility, who pays, provider, cam etc  
, if submeter etc

KPS AND SEC 2 LATE DELIVERY

A. If Landlord has not delivered the Premises by the (“**Delivery Deadline**”) then a (“**Delivery Deadline Breach**”) has occurred and as described below:

i. **Termination Right.** Tenant may, upon written notice delivered after the 90th day and prior to Landlord’s delivery of the Premises in (“**Delivery Condition**”), elect to terminate this Lease. Upon such termination, any prepaid Rent and Security Deposit shall be returned to Tenant within five (5) business days, and neither party shall have any further obligation under this Lease.

OR

ii. **Rent Credit.** Tenant may elect to proceed with the Lease, in which event Tenant shall receive a credit equal to two (2) days of Base Rent for each day of delay beyond the 90th day, which credit shall be applied against the next ensuing Rent payments until fully exhausted. Tenant shall not otherwise have any claim, offset, or cause of action against Landlord arising from any delay in delivery of possession. Landlord shall provide Tenant access to the Premises as of the Commencement Date for the purpose of commencing Tenant’s improvements. As a condition precedent to such access or possession, Tenant shall first provide evidence of all insurance coverage required under this Lease, and Landlord shall have no obligation to permit access until such proof is delivered and approved.

KPS AND SEC 2 INSPECTION PERIOD?

B. **Inspection Period.**

SEC 8 SECURITY DEPOSITS

A. **Conditional Reduction.** Notwithstanding the foregoing, provided that Tenant has timely made all rent payments for the first thirty-six (36) months of the Term and is not otherwise in default beyond any applicable notice and cure period, Tenant shall have the right, on or after the end of the 36th month, to reduce the Security Deposit to an amount equal to two (2) months of the then-current

#### Base Rent.

- i. Application of Credit: Upon Tenant's written request to exercise this reduction, Landlord shall apply the excess Security Deposit held toward Tenant's account (as a credit against future rent).
- ii. Reinstatement Rights: If Tenant is in default at the time they attempt to exercise this reduction, the right shall be suspended. Once the default is cured, Tenant's right to reduce the Security Deposit shall be reinstated effective as of the cure date.

**B. Application to Final Month.** At the end of the Lease Term, provided Tenant is not in default, Tenant may apply a portion of the Security Deposit equal to one (1) month of the Base Rent toward the rent due for the 120th month (or the final month of the Term, including any option periods).

### SEC 9 LANDLORD WORK

Landlord shall be responsible for obtaining any required certificate of occupancy prior to the ("Lease Commencement Date") at Landlord's sole cost and expense.

- A. If any municipal permits, certificate of occupancy ("CO") or other final approvals are required in connection with Landlord's Work, Landlord agrees to obtain same at Landlord's sole cost and expense. If a CO cannot issue for all or any part of Landlord's Work until Tenant completes Tenant's Work, Landlord shall provide Tenant with a certification from Landlord's general contractor confirming that so much of Landlord's Work as is required to pass inspections of the municipality prior to the issuance of a CO, has passed inspections.

### SEC 12 PARKING

**Section 12. Parking.** . Parking at the property or premises shall be governed by the following conditions:

- A. Tenant agrees no construction trucks or oversized vehicles will be parked during the day or night in the lot and will they be stored in the lot overnight.
- B. Tenants agree it will use its best effort to encourage their employees to use public transportation to get to and from work to avoid overcrowding the existing parking lot.
- C. Landlord reserves the right to modify the common areas, including the parking lots, driveways, ingress/egress points, and walkways, provided such modifications do not materially prevent access to the Premises. Landlord shall have the exclusive right to regulate and control the common areas for the joint use and benefit of all tenants.

### EXHIBIT C: LANDLORD WORK

#### PHASE 1 –

DEMO THE ENTIRE PREMISES AND DELIVER THE SPACE AS A SHELL INCLUDING EXPOSED WALLS, FLOORS AND CEILINGS.

Gas: Landlord to provide separately metered gas line stubbed to the Premises.

Water: Landlord to provide a minimum 1.5" water line stubbed to the Premises with back flow prevention device installed on the water main.

Sewer: Landlord to provide minimum 4" sewer line stubbed to the Premises.

HVAC: Landlord agrees to start the work to deliver a new 32-ton HVAC system stubbed to the Premises for heating and cooling the entire Premises. Tenant requires 1-ton per 125 SF during Phase 1. Completion of HVAC work is not required to complete Phase 1 and begin lease commencement.

#### PHASE 2 –

Electric: BUILDING CURRENTLY HAS 400 AMPS – 3 PHASE TO PROVIDE THE FIRST AND SECOND FLOOR. THE TENANT SHALL PROVIDE THE LANDLORD WITH THEIR LOAD REQUIREMENT WITH 30 DAYS OF SIGNING THIS LOI. UPON RECIEPT, IF ADDITIONAL ELECTRIC IS REQUIRED, LANDLORD WILL INSTALL SUCH REQUIRED ELECTRIC, SUBJECT TO FINAL APPROVAL (I.E.. 600 Amp, 120/208 volt, 3 phase, 4 wire service stubbed to the Premises, and Landlord shall reasonably cooperate with Tenant to bring into the Premises an additional/secondary power source, if needed. SUCH WORK MAY TAKE UP TO 270 DAYS TO BE COMPLETED.

DELETE ABOVE DELETE ABOVE DELETE ABOVE DELETE ABOVE DELETE ABOVE

This **LEASE AGREEMENT** (hereafter referred to as the “Lease”) is made on The date this Lease is executed by both parties which is: \_\_\_\_\_:

**BETWEEN**

MARION STREET 114 LLC

hereinafter referred to as the “Landlord”,

**AND**

CHEZ ALICE,

hereinafter referred to as the “Tenant”.

**Section 1. Premises.** The Landlord does hereby lease to the Tenant, and the Tenant does hereby lease from the Landlord, the following described premises:

- A. One (1) Ground Floor Retail (hereinafter collectively referred to as “the store”) in a commercial building (hereinafter referred to as “the building”) located at 114 Central Ave (also known as 102-104 Quimby St), Westfield, NJ 07090 consisting of Approximately 2423 Total Gross Sq Feet and hereinafter collectively referred to as the “Premises” with the Tenant’s Share of the Property being **29.70%** , **Tenant’s Share of the Floor being 50.00%** and the Tenant’s Share of the Premises being **100.00%** (hereinafter collectively referred to as the “Tenant’s share”).
- B. If the property is every subdivided, expanded, contracted or another building is built on the same property then the tenant’s proportionate share of the property shall be adjusted.

**Section 2. Lease Term.** The term of this Lease shall be for a period of One Hundred Twenty-Five (125) Months from Lease Commencement Date (hereinafter the “Lease Term”) under the following terms and conditions:

- A. **Lease Execution Date.** The date this Lease is executed by both parties which is: \_\_\_\_\_
- B. **Lease Commencement Date.** The date in which the Premises are delivered to the Tenant in (“Lease Delivery Condition”), which date is anticipated to be on or around August 1st, 2026
- C. Except for Landlord’s work, if any, as specifically set forth in Exhibit C: Landlord Work Itemized, Tenant acknowledges and agrees to accept possession of the Premises in its existing “as-is”, “where-is” condition without representation or warranty by Landlord as to the condition of the Premises, its suitability for Tenant’s intended use, or compliance with laws.
- D. **Permit Period.** Tenant shall have ninety (90) days from Lease Execution Date to verify whether they can obtain a seating variance that will allow for seating of up to thirty (30) people in the leased premises. Should the tenant not be able to obtain the variance by this deadline, the Tennat may elect to terminate the lease and receive a full refund of all security deposits paid less a \$5,000.00 penalty.

- E. **Rent Commencement Date.** The Rent Commencement Date shall be the earlier of: (i) Tenant's opening for business or (ii) one hundred fifty (150) days after Lease Commencement Date. For the purposes of this Lease, the "Rent Commencement Date" shall be approximately on or about February 1st, 2022
- F. **Lease Expiration Date.** This Lease shall expire at Midnight at the end of the last day of the last full calendar month after a period of time equal to the ("Lease Term") and following the Rent Commencement Date. The Expiration Date is anticipated to **be on or about January 31, 2037**, unless sooner terminated pursuant hereto or by law or unless extended in accordance with executed "options to renew" as outlined in this Lease
- G. **Option to Cancel.** During the eighty-third (83rd) month of the lease following the Lease Commencement Date, Tenant has the one-time option to provide the Landlord a one-hundred eighty (180) day written cancellation notice, whereas the tenant will be cancelling the lease and be responsible for the rent and additional rent for the remainder of such days through the completion of eighty-ninth (89th) month of the lease and may vacate the space. As long as the space is delivered in broom clean condition, and in accordance with this lease, there will be no penalty. If there is no notice received by the landlord as described above, it is assumed the lease will continue through the remainder of the lease term as outlined

**Section 4. Permitted Use.** The Premises are to be used and occupied only and for no other purpose than the operation of a **ARTISNAL BAKERY, with** a commercial kitchen offering, limited seating, take-out and delivery of both prepared food and bakery items. In addition:

- A. Tenant shall not use or permit the Premises to be used for any other purpose without the prior written consent of Landlord which shall not be unreasonably withheld, conditioned or delayed. Tenant shall be responsible to obtain all licenses and permits required by Local, State and Federal governments prior to the opening of business.
- B. The Tenant will not and shall not allow others to occupy or use the Premises or any part thereof for any purposes other than as specified in this **Section 4**, nor for any purpose deemed unlawful, disreputable, or extra hazardous, on account of fire or other casualty.

**Section 4.1 Suitability.** Tenant acknowledges that neither Landlord nor any agent of Landlord has made any representation or warranty with respect to the Premises or the suitability of the Premises for the operation of the Tenant's business, nor has Landlord agreed to undertake any modification, alteration or improvement to the Premises except as provided in this Lease. The taking of possession of the Premises by Tenant shall conclusively establish that the Premises were at such time in satisfactory condition. Tenant accepts the premises "AS IS".

**Section 5. Base and Additional Rent.** Tenant acknowledges and agrees that this is a Triple Net Lease (NNN), as modified herein, it being understood that Landlord shall receive all Rent ("**Base Rent**" and "**Additional Rent**") as provided in the Lease free and clear of any and all impositions, encumbrances, charges, obligations or expenses of any nature whatsoever in connection with the ownership and operation of the Premises. The "Base Rent" is intended to be absolutely net to Landlord after payment by Tenant of all "Additional Rent" required to be paid by Tenant pursuant to this Lease. The monthly triple net Base Rent for the Term shall be payable in advance in equal monthly installments on the first (1st) day of each



calendar month in accordance with the following schedule which the Tenant hereby covenants and agrees to pay Landlord:

**Base Rent Table:**

| Term         | Monthly Amount | Annual Amount |
|--------------|----------------|---------------|
| Year 1       | \$ 10,903.50   | \$ 130,842.00 |
| Year 2       | \$ 11,121.57   | \$ 133,458.84 |
| Year 3       | \$ 11,344.00   | \$ 136,128.02 |
| Year 4       | \$ 11,570.88   | \$ 138,850.58 |
| Year 5       | \$ 11,802.30   | \$ 141,627.59 |
| Year 6       | \$ 12,038.35   | \$ 144,460.14 |
| Year 7       | \$ 12,279.11   | \$ 147,349.34 |
| Year 8       | \$ 12,524.69   | \$ 150,296.33 |
| Year 9       | \$ 12,775.19   | \$ 153,302.26 |
| Year 10      | \$ 13,030.69   | \$ 156,368.30 |
| Mths 121-125 | \$ 13,291.31   | \$ 159,495.67 |

**Table End**

- A. Upon mutual agreement of the Lease Commencement Date, Landlord and Tenant shall execute a Lease Commencement Agreement acknowledging the lease start date, rent commencement date, and expiration date of the lease.
- B. All Free Rent, Tenant Improvement Allowances, Brokerage Commissions paid by Landlord, and Legal Fees incurred by Landlord (collectively, "Leasing Costs") are granted in consideration of Tenant's full performance throughout the entire Term. If Tenant defaults and fails to cure within the applicable cure period, this Lease is terminated prior to expiration for any reason other than Landlord's default, or Tenant Goes Dark in violation of subsequent sections of this Lease, Tenant shall immediately repay the unamortized portion of all Leasing Costs, calculated on a straight-line basis over the entire Lease Term. All such sums are Additional Rent, immediately due and payable upon demand, and this obligation survives termination.

**Section 5.1 Additional Rent.** In addition to the Base Rent, Tenant shall pay Additional Rent representing Tenant's proportionate share (as set forth in Section 1 and the Key Provisions Summary) of the Landlord's Operating and Maintenance Costs for the Premises, as defined below. All such sums shall constitute Rent under this Lease, and the Landlord shall have the same rights and remedies for non-payment as for failure to pay Base Rent.

**Section 5.2 Operating and Maintenance Cost.** This being a triple net lease, it is understood that the Landlord shall receive all Rent as provided in the Lease free and clear of any and all impositions, encumbrances, charges, obligations or expenses of any nature whatsoever in connection with the ownership and operation of the Premises. As such, Tenant shall be responsible for including but not limited to; Tenant's pro-rata portion of all real estate taxes, repairs and maintenance, maintenance and service contracts, property management, plumbing, roofing, HVAC repair and maintenance, painting, wall and window washing, tools and equipment, all insurance premiums for fire, extended coverage, liability, and any other insurance that Landlord deems necessary for the Premises, trash and recycling removal, elevator maintenance, if applicable, pest extermination, alarm system, sprinkler service (if applicable), water and sewer service, common area electric, janitorial services, snow and ice removal and all other items properly constituting direct operating and maintenance costs (herein collectively referred to as "Operating Costs"). Should the property ever be split into separate properties or a new structure is built on same, the proportionate shares may be subject to adjustment. Operating Costs shall not include depreciation of any building or equipment, interest, mortgage debt service, income or excess profit taxes, franchise taxes or salaries of the Landlord's executive officers, however depreciation of all capital expenditures for repairs and replacement over the useful life of the improvement as used for federal income tax purposes shall be

included. The total of the Tenant's proportionate share percentages are outlined on the "**Key Provisions Summary**" and **Section 1** of this document. (#Share\_Premises; #Share\_Property)

- A. **Payment of Tenant's Additional Rent.** Tenant shall pay an estimated monthly installment of Additional Rent during the first Lease Year in the amount of \$3,025.00, . For each subsequent Lease Year, the monthly estimate shall equal one-twelfth (1/12) of the prior year's total Additional Rent, subject to adjustment as determined by Landlord based on actual building expenses. Landlord shall reconcile estimated and actual Operating Costs on a quarterly, semi-annual, or annual basis (at Landlord's discretion) and shall provide a statement to Tenant within approximately thirty (30) days after the close of each reconciliation period. Within thirty (30) days of receipt of the reconciliation invoice: If the actual amount exceeds Tenant's estimated payments, Tenant shall pay the deficiency. If the actual amount is less than the estimated payments, Tenant shall receive a credit toward the next month's Additional Rent. Annual charges may be amortized into twelve (12) monthly installments as determined by Landlord. If payment is not received within 30 days, penalties will follow procedures outlined in Section 6 below.
- B. Landlord reserves the right to have Tenant pay its Base Rent and Additional Rent via on-line payment by ACH transfer to Tenant's portal, or any other reasonable means determined by the Landlord. In the event Tenant does not comply, Tenant shall be subject to an administrative fee for each occurrence of payment by any other method.
- C. As of the Lease Commencement Date, Tenant shall transfer all utility accounts serving the Premises into Tenant's name and maintain them in good standing for the Lease Term. Tenant shall also maintain an HVAC service contract and, if applicable, an alarm monitoring contract and pest control of the premises at Tenant's sole cost. This Lease is non-terminable by Tenant for any reason other than as expressly provided herein. Tenant shall not be entitled to any abatement, offset, or reduction of Rent, including Additional Rent, except as expressly stated in this Lease.
- D. Tenant may, upon thirty (30) days' prior written notice given not more than once per calendar year and not later than ninety (90) days after Tenant's receipt of the annual reconciliation statement, audit Landlord's books and records relating solely to Operating Costs for the immediately preceding calendar year, at Tenant's sole cost and expense, during normal business hours at Landlord's office, by a certified public accountant not compensated on a contingency basis, provided that Tenant has paid and continues to pay all amounts due pending resolution and that Tenant and its auditor keep the results confidential.

**Section 5.3 Options to Renew.** Tenant may extend the Lease for two (2) additional terms of sixty (60) months each (each, an "Option Term"), see details below

First Option Term: Fair Market Value

Second Option Term: Fair Market Value

| Option 1 | Monthly Amount | Annual Amount |
|----------|----------------|---------------|
| Year 1   | TBD            | FMV           |
| Year 2   | TBD            | FMV           |
| Year 3   | TBD            | FMV           |
| Year 4   | TBD            | FMV           |
| Year 5   | TBD            | FMV           |
|          |                |               |
| Option 2 | Monthly Amount | Annual Amount |
| Year 1   | TBD            | FMV           |
| Year 2   | TBD            | FMV           |
| Year 3   | TBD            | FMV           |
| Year 4   | TBD            | FMV           |
| Year 5   | TBD            | FMV           |

DELETE TABLE

Table End

## NO NEED TO INCLUDE TABLES

Each Option Term is subject to: (a) written notice at least 270 days before expiration of the applicable term (failure to give timely notice waives the option); (b) same terms as this Lease except Base Rent; (c) no options beyond the outlined Option Term; (d) Landlord may deny options to assignees or subtenants or in the event Landlord sells the building; (e) no defaults beyond applicable cure periods; (f) no more than two late rent payments in any twelve-month period during the Term; and (g) continued payment of all Additional Rent.

**Section 6. Utilities and Service Contracts.** This being a Triple Net Lease (NNN), Utility and Service Contracts are to be directly established and paid for by tenant include but not limited to: hot and cold water (American Water), electricity (JCP&L), gas (PSEG). All other service accounts and contracts to be established by landlord but to be reimbursed by tenant through the CAM reconciliation process, however Landlord reserves the right to require tenant to directly contract with a preferred vendor for any building service where applicable (e.g Waste Removal;). Immediately upon execution, Tenant shall notify all utility companies and open accounts in Tenant's name. Any utility charges imposed on Landlord shall be Additional Rent due with the next rent installment or within thirty (30) days of demand. If Tenant requires water for other than ordinary lavatory purposes, Landlord may install a meter at Tenant's expense, and Tenant shall maintain it and pay Tenant's proportionate share of charges. Landlord may sue for and collect any monies owed under this Section.

- A. Snow and Ice Removal, Extermination, Garbage and Recyclables.** Tenant shall be responsible for contracting directly with building vendors and bear all costs for: (i) snow and ice removal for all sidewalks abutting the property and all walkways and parking areas, keeping said areas clear of debris at all times; (ii) pest control of the Premises; and (iii) garbage removal, recycling, and special handling of waste related to Tenant's business unless otherwise notified by Landlord that Landlord will be assuming the contract and passing the cost to the tenant via the CAM reconciliation process. Tenant shall defend and indemnify Landlord for all fines and penalties imposed by any governmental authority arising from Tenant's failure to maintain the Premises, and shall, upon notice from Landlord, notify said authority that such maintenance is Tenant's responsibility.

**Section 7. Late Payments and Dishonored Checks.** In the event any rent payment due hereunder is not received by the Landlord by the 5th day of the month, then and in that event, Tenant shall pay to the Landlord as additional rent a late fee in the amount of five percent (5%) of all cumulative balances due at that time. It is expressly understood that acceptance by the Landlord of any rent payment without late fees

included shall not be construed to be a waiver by the Landlord of the obligation of the Tenant to pay said late fees pursuant to this section. In the event any rent payment made by the Tenant is dishonored for reasons such as insufficient funds or otherwise, then and in that event, Tenant shall pay to the Landlord as additional rent a dishonored payment fee in the amount of five percent (5%) of all cumulative balances due at that time.

**Section 8. Security Deposit.** Tenant will be subject to posting a security deposit with the landlord as follows:

- C. **Initial Deposit.** Upon the execution of this Lease, Tenant shall deliver to Landlord a Security Deposit in the amount of \$21,807.00, representing two (2) months ("The Month Multiplier") of the Base Rent for the first lease year.
- D. **Maintenance of Deposit.** It is the intention of the parties that the Security Deposit shall at all times remain equal to the ("**Month Multiplier**") times the then-current Base Rent. Accordingly, whenever the Base Rent increases (whether annually or otherwise), Tenant shall, within ten (10) days of such adjustment, deposit with Landlord an additional amount sufficient to increase the Security Deposit to equal the ("**Month Multiplier**") times the new, adjusted Monthly Base Rent.
- E. **Return of Balance.** Any remaining balance of the Security Deposit shall be returned to Tenant within sixty (60) days after the later of either the:
  - i. The expiration of the Lease Term, or
  - ii. Tenant vacating of the Premises and full compliance with all obligations under this Lease.

**Section 9. Landlord's Work.** Landlord will perform itemized work to the premises subject to the following conditions: (#Landlord Work Itemized)

- B. Landlord shall, at its sole cost and expense, perform the itemized work described Exhibit C: Landlord Work Itemized and in the time frames set forth therein subject to any delays that are beyond the Landlord's control such as but not limited to failure of the municipality, county or state where the Premises is located to issue any required building and/or zoning or other certificate necessary for Landlord's Work or delays caused by acts of God.
- C. Except for Landlord's Work, Landlord shall not be required to do any work to prepare the Premises for Tenant's occupancy; it being accepted and agreed that Tenant shall take the Premises in its "as-is, where-is" condition on the ("**Lease Commencement Date**").

**Section 9.1 Tenants Work.** Tenant, at its sole cost and expense, shall perform the work described in Exhibit D: Tenant Work Itemized. Tenant is permitted to perform previously approved itemized work to the premises subject to the following conditions:

- A. While preparing the Premises for Tenant's permitted use as set forth in Section 4. Tenant shall be solely responsible for obtaining all required governmental permits, approvals, and certificates of occupancy for Tenant's Work. All such work shall be completed in accordance with the time frames and specifications set forth in Exhibit D: Tenant Work Itemized. Delays caused by events beyond

Tenant's reasonable control — including acts of God or delays in the issuance of required governmental approvals — shall extend the applicable completion deadlines for a period equal to such delay.

- B. Tenant's Work shall be performed in accordance with detailed architectural and/or engineering plans and specifications (**"the "Plans"**). Tenant shall submit the Plans to Landlord for review and approval within sixty (60) days following the full execution of this Lease. Landlord shall provide written approval or reasonably detailed reasons for disapproval within fourteen (14) days after receipt. If Landlord requires revisions, Tenant shall, within seven (7) days thereafter, resubmit amended Plans for Landlord's approval. If Landlord requires further changes, Landlord shall notify Tenant within five (5) days, and Tenant shall resubmit revised Plans within five (5) days thereafter. Landlord's approval shall not be unreasonably withheld, conditioned, or delayed.
- C. In recognition of Landlord's need to maintain control over the property's development and appearance, Tenant shall not seek or apply for any approvals, variances, permits, or other governmental authorizations affecting the Premises or the Building (including applications to any municipal board or council) without Landlord's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed, provided such actions by Tenant do not interfere with Landlord's operations or other development activities.
- D. As part of the negotiation of this Lease, Landlord agrees to contribute a Tenant Improvement Allowance of \$48,460 toward Tenant fit-out and building systems. The allowance shall be paid in three equal tranches at three (3), six (6), and nine (9) months after Lease Commencement Date, provided Landlord receives lien waivers and invoices totaling at least the tranche amount and Tenant is open for business. If Tenant does not occupy and open for business within twelve (12) months of Lease Commencement Date, Tenant waives reimbursement rights and any amounts already paid shall be refundable to Landlord.

**Section 10. Maintenance and Repairs.** Maintenance and repairs to the property and premises will be subject to the following conditions and procedures:

- A. **Repairs by Landlord.** Landlord shall repair and maintain the exterior structural portions of the Premises, including exterior walls and roof, but excluding all interior areas, signs, windows, plate glass, doors, and all plumbing, electrical, heating, and cooling systems. Landlord shall have no obligation to repair until a reasonable time after receipt of written notice. Landlord shall not be responsible for maintenance or repair caused by Tenant's neglect, fault, or omission, or by unauthorized entry or vandalism, in which event Tenant shall be responsible. If Tenant or its agents damage the roof or structural portions, Tenant shall pay the repair costs. There shall be no rent abatement or liability of Landlord for any injury to or interference with Tenant's business arising from repairs, alterations, or improvements. Tenant waives any right to make repairs at Landlord's expense.
- B. **Repairs by Tenant.** Tenant shall maintain in good order and repair the entire interior of the Premises, including all electrical, plumbing, HVAC, elevator (if applicable), and sprinkler systems, all improvements and equipment installed by Tenant, and all signs, glass (including plate and show windows), and doors. Tenant shall secure and pay for an HVAC service contract and shall insure all plate glass at full insurable value with a company satisfactory to Landlord, with the policy deposited with Landlord. Tenant shall not make alterations, additions, or improvements without

Landlord's prior written consent, which shall not be unreasonably withheld, conditioned or delayed and shall use licensed contractors, approved plans, proper permits, and workers covered by Workers' Compensation Insurance. All work shall comply with applicable building codes at Tenant's expense.

- C. **Tenants Failure to Maintain.** If Tenant fails to maintain the Premises in good order and repair, Landlord shall give Tenant notice. If Tenant fails to promptly commence and diligently complete such work, Landlord may perform such work at Tenant's expense. Tenant shall pay any amount so expended by Landlord promptly after demand with interest at 1.5% per month from the date of such work. Landlord shall have no liability for any damage, inconvenience, or interference with Tenant's use arising from performing such work. If Tenant causes any damage to the Premises, Tenant shall repair, replace, or restore at Tenant's sole cost and expense.
- D. **Glass, etc. Damage, Repairs.** In case of the destruction of or any damage to the glass in the Premises, or the destruction of or damage of any kind whatsoever to the Premises, caused by the carelessness, negligence or improper conduct on the part of the Tenant or the Tenant's agents, employees, guests, licensees, invitees, subtenants, assignees or successors, the Tenant will repair the said damage or replace or restore any destroyed parts of the Premises, as speedily as possible, at the Tenant's own cost and expense. Plate glass, if any, shall be insured by the Tenant at their full insurable value in a company satisfactory to the Landlord. Said policy shall be of the full premium type, and shall be deposited with the Landlord or his agent.
- E. **Condition Upon Expiration of Term.** Upon expiration or termination, Tenant shall surrender the Premises in good condition, broom clean, ordinary wear and tear excepted. All buildouts, alterations, improvements, and fixtures installed by Tenant or Landlord shall become Landlord's property and shall remain with the Premises upon expiration or termination. Notwithstanding the foregoing, and not to exceed 15 days after expiration or termination, Landlord may require Tenant to remove any or all alterations, buildouts, improvements, or fixtures installed by Tenant during the term. Tenant shall complete such removal and restore the affected areas to their original condition at Tenant's sole cost and expense prior to vacating. If Tenant fails to timely remove and restore as required, Landlord may perform such work and recover all costs from Tenant as additional rent. Any personal property, equipment, fixtures, goods, or other property of Tenant remaining in the Premises after Tenant vacates, or upon any quitting, abandonment, or eviction, shall be deemed abandoned. Landlord may retain, remove, sell, or otherwise dispose of such property without notice to Tenant and at Tenant's expense, and Landlord shall not be accountable to Tenant for any proceeds. Tenant shall indemnify Landlord against any loss or liability resulting from Tenant's breach of its surrender obligation, including claims by succeeding tenants.

**Section 11. Signs.** Tenant shall be allowed signs for the premises given the following conditions:

- A. Tenant may install signage at Tenant's sole cost, including construction, installation, permits, fees, and repairs, and shall maintain such signage in accordance with the "Maintenance and Repairs" section of this Lease.
- B. Tenant shall be solely responsible for obtaining all required governmental approvals for signage. Landlord makes no warranty that such approval will be granted. Failure to obtain approval shall not excuse Tenant from any obligations under this Lease.

- C. If shared signage is required or suggested, Tenant shall cooperate with other tenants or Landlord to create and obtain approvals for such shared signage.
- D. Within fifteen (15) days after expiration or termination, Tenant shall remove all signage, panels, and electrical hook-ups and restore the area to its prior condition. If Tenant fails to remove such signage, Landlord may remove and restore at Tenant's expense, payable within ten (10) days of invoice.
- E. Tenant shall not install permanent exterior signage without Landlord's prior written approval as to type, size, color, location, and content. Temporary signs (31 calendar days or less) are allowed without consent, provided such signs do not become a nuisance.
- F. Landlord may, at Landlord's expense, relocate Tenant's exterior signage to a comparable location if necessary for renovations, construction, site reconfiguration, or to accommodate other tenants, provided such relocation does not materially impair visibility.

**Section 12. Sprinkler System.** If the Premises contains a sprinkler system, Tenant will be subject to the following conditions:

- A. Tenant shall be responsible for all maintenance, annual registration, and/or utility service fees in connection with the sprinkler system.
- B. If a sprinkler system is required for tenant's use within demised premises, tenant is responsible to install and maintain such system.

**Section 13. Cessation of Operations/Failure to Open ("Go-Dark Event").** Tenant shall open for business to the public in the Premises no later than twelve (12) months after Lease Commencement Date set forth in this Lease. Tenant's failure to (i) take possession of the Premises, and/or (ii) open for business and continuously operate from the Premises on or before that date shall be deemed a ("**Go-Dark Event**"), and shall trigger all obligations and remedies set forth in this Section. In addition, any cessation of operations for more than ninety (90) consecutive days after initially opening or one hundred-fifty days (150) in a rolling 12 months shall also constitute a ("**Go-Dark Event**"). If Tenant goes dark, whether by failing to open or by ceasing operations after opening, the following provisions apply:

- A. **Tenant Obligations During Go-Dark.** Tenant shall maintain storefront, signage, façade, windows, doors, landscaping, and security in first-class condition, maintain interior and exterior lighting on timers to prevent appearance of abandonment, maintain all alarm and security systems in active monitored condition, display no signage indicating closure, liquidation, or business failure, maintain all insurance required under this Lease including vacant-building endorsements if required, and provide Landlord with emergency contact information and access.
- B. **Go-Dark Surcharge.** For each month or partial month Tenant is dark, Tenant shall pay a surcharge equal to 15% of Base Rent, in addition to all other Rent and Additional Rent in accordance with this lease.
- C. **Landlord's Recapture Right.** If a "Go-Dark Event" occurs, Landlord may terminate this Lease upon thirty (30) days' written notice, and upon such termination Tenant shall remain liable for the unamortized portion of any tenant improvement allowance amortized straight-line over the initial

Term, any brokerage commissions or leasing fees amortized straight-line over the initial Term, the unamortized value of any rent abatement or economic concessions, and if the Premises are re-let at a lower rate, the present value of the difference between the Rent reserved hereunder and the replacement lease rent for the remainder of the original Term, all of which obligations survive termination.

- D. No Waiver. Landlord's acceptance of Rent or Go-Dark Surcharge during a Go-Dark Event shall not be deemed consent to cessation nor waiver of Landlord's remedies.

**Section 14. Broker's Commission.** Landlord and Tenant represent and warrant to each other that Patrick Dintrone of Newmark and Jason Forster of Proventus Properties are the only ones in connection with the transaction contemplated by this Agreement and such company shall be paid a commission pursuant to the terms of a separate commission agreement between Landlord and them. Other than such brokerage commission, Landlord and Tenant represent and warrant to each other that they have dealt with no broker in connection with the transaction contemplated by this Agreement. Each party agrees to defend, indemnify and hold the other harmless from and against any and all expense, cost, damage or liability resulting from the claims of any brokers or those claiming to have performed services in the nature of brokerage services for either one of the parties.

**Section 15. Guaranty of Lease.** The performance of the Tenant of this Lease shall be Guaranteed based on the terms outlined in the attached **Exhibit**, by the individual(s) or company executing a separate document signed contemporaneously herewith entitled "**Guaranty of Lease**". This guaranty shall extend and apply with respect to the full and faithful performance and observance of all the covenants, terms and conditions of the Lease, as existing, extended, renewed, or modified and of any such amendment thereof even if:

- A. The Lease shall be renewed or its term extended for any period beyond the original termination date specified in the Lease or otherwise at any time
- B. Tenant holds over beyond the term of the Lease or any extension or renewal thereof
- C. the Lease is modified in any way.

**Section 16. Compliance with Laws, Etc.** Tenant shall at its sole cost and expense promptly comply with all laws, statutes, ordinances, rules, regulations, requirements, and directives of all federal, state, and municipal governments and public authorities, and all their departments, bureaus, and subdivisions, now in force or hereafter enacted, applicable to the Premises, their use and occupancy, including the correction, prevention, and abatement of nuisances, violations, or other grievances in, upon, or connected with the Premises. Tenant shall likewise comply with all orders, regulations, and requirements of the Board of Fire Underwriters or similar authority and of any insurance companies which have issued or are about to issue policies covering the Premises and its contents, for the prevention of fire or other casualty, damage, or injury. Tenant shall be solely responsible for obtaining all licenses and permits required by local, state, and federal governments prior to opening for business and shall maintain all such licenses and permits in good standing throughout the Term.

**Section 17. Zoning, Governmental Permits and Licenses.** The Landlord makes no representations regarding zoning, and it is Tenant's responsibility to ascertain any and all zoning matters pertaining to the property and the use and occupancy of the Tenant. The Tenant hereby agrees to secure,



at its own cost and expense, any and all governmental approvals, permits and licenses which may be required for the use and occupancy of the premises as stipulated in this Lease, and for the alteration(s), if any, which the Tenant may cause to be made therein. Tenant shall be responsible for the costs and expense of any alterations made. It is understood that any alterations require written consent of Landlord, which shall not be unreasonably withheld, conditioned or delayed as set forth elsewhere in this Lease.

**Section 18. Assignment and Sublease.** Tenant shall not assign this Lease or sublet the Premises without Landlord's prior written consent, which shall not be unreasonably withheld, conditioned or delayed. Any transfer of more than 50% of Tenant's equity to parties who are non-owners as of the date of this Lease shall constitute an assignment. Landlord may withhold consent if: (i) the proposed transferee's financial condition is insufficient; (ii) the proposed use differs from Tenant's use and is inappropriate for the Building or would cause excessive traffic or demands on Building services. Any request for assignment or sublease shall include the proposed transferee's address, a duplicate original of the assignment or sublease instrument, and any other information Landlord requests. Failure to respond within fifteen (15) days shall be deemed a denial. No assignment shall relieve Tenant from liability unless Landlord expressly agrees in writing. Landlord may require a processing fee of \$2,000 and reasonable attorney fees. In any approved assignment or sublease, Tenant shall split equally with Landlord all monies (including key money) received in excess of Base Monthly Rent. Any assignment or sublease shall automatically terminate renewal options unless Landlord expressly agrees otherwise in writing.

**Section 19. Fire and Other Casualty.** If the Premises are damaged by fire or other casualty, Landlord shall repair and rent shall abate proportionately during repair based on the extent to which the damage interferes with Tenant's business. If the Premises are so extensively damaged as to render them untenantable, rent shall cease until the Premises are made tenantable, provided such repairs can be completed within one hundred eighty (180) days. If such repairs will exceed 180 days, or if the Premises are totally destroyed or so extensively damaged as to require substantial rebuilding, rent shall be paid to the date of destruction and this Lease shall terminate at Landlord's option. Landlord may also terminate if damage occurs during the final twenty-four (24) months of the Term or any extension thereof. If the damage is caused by the carelessness, negligence, or improper conduct of Tenant or its agents, employees, guests, invitees, subtenants, or assignees, there shall be no abatement of rent and Tenant shall remain liable for all rent and obligations under this Lease and for all damage and loss suffered by Landlord. Any insurance proceeds payable to Tenant covering such damage shall be paid to Landlord to the extent of Landlord's repair costs, and such insurance carriers shall have no recourse against Landlord for reimbursement. Landlord's determination of the time required for repair and the extent of damage shall be final and binding.

**Section 20. Alterations and/or Improvements.** Tenant shall not make any alterations, improvements, or additions to the Premises without Landlord's prior written consent. Prior to commencing any work, Tenant shall complete Landlord's work approval forms and submit detailed plans and specifications for review. Landlord may require Tenant to deposit escrow sufficient to cover permit costs, with any unused balance returned upon completion and close out of permits. All alterations, additions, and improvements made by Tenant, except removable trade fixtures, shall upon installation become Landlord's property. Tenant shall notify Landlord in writing of the expected commencement date before starting any work. Landlord may post and maintain notices on the Premises to protect against mechanics' liens or other liens. Should any lien arise from work performed for Tenant, Tenant shall immediately cause it to be satisfied and discharged of record upon Landlord's demand. All work shall be performed by licensed contractors with proper permits, approved plans, and Workers' Compensation coverage, at Tenant's sole cost and in compliance with applicable building codes. Upon termination of this Lease (voluntarily or involuntarily) or within fifteen (15) days thereafter, Landlord may direct Tenant to remove any or all alterations and leave others in place. Tenant shall promptly perform such removal and repair any resulting

damage at Tenant's sole expense.

**Section 21. Inspection and Repair.** The Tenant agrees that the Landlord and the Landlord's agents, employees or other representatives, will have the right to enter into and upon the Premises or any part thereof, at all reasonable hours, for the purpose of examining the same or making such repairs or alterations therein as may be necessary for the safety and preservation thereof. The preceding sentence will not be deemed to be a covenant by the Landlord nor be construed to create an obligation on the part of the Landlord to make such inspection or repairs. Any entry by Landlord or its agents, contractors or employees shall be done at such times as shall minimize interference with Tenant's use and occupancy of the Premises, Tenant's business operations and access to the Premises by Tenant and Tenant's invitees and employees.

**Section 22. Right to Exhibit.** The Tenant agrees to permit the Landlord and the Landlord's agents, employees or other representatives to show the Premises to persons wishing to rent or purchase the same, and Tenant agrees that during the **six (6) months** preceding the expiration of the term hereof, the Landlord or the Landlord's agents, employees or other representatives will have the right to place notices on the front of the Premises or any part thereof, offering the Premises for rent or for sale; and the Tenant hereby agrees to permit the same to remain thereon without hindrance or molestation. The Tenant will also permit the Landlord and the Landlord's agents, employees or other representatives to show the Premises to prospective mortgagees of the Premises or the land and improvements of which the Premises are a part.

**Section 23. Non-Liability of Landlord.** The Landlord will not be liable for any damage or injury which may be sustained by the Tenant or any other person, as a consequence of the failure, breakage, leakage or obstruction of the water, plumbing, steam, sewer, waste or soil pipes, roof, drains, leaders, gutters, valleys, down-spouts or the like or of the electrical, gas, power, conveyor, refrigeration, sprinkler, air-conditioning or heating systems, elevators or hoisting equipment; or by reason of the elements; or resulting from the carelessness, negligence or improper conduct on the part of any other tenant or the Tenant's agents, employees, guests, licensees, invitees, subtenants, assignees or successors; or attributable to any interference with, interruption of or failure, beyond the control of the Landlord, of any services to be furnished or supplied by the Landlord. Notwithstanding any contrary provision contained in this Lease, neither Landlord nor its officers, directors, members, agents or employees will be responsible or liable to Tenant for any consequential damages, lost profits, loss of business opportunity, or loss of goodwill under any circumstances whatsoever.

**Section 24. Mortgage Priority.** This lease will not be a lien against the Premises with respect to any mortgages that may hereafter be placed upon the Premises. The recording of such mortgage or mortgages will have preference and precedence and be superior and prior in lien to this lease, irrespective of the date of recording and the Tenant agrees to execute any instruments, without cost, which may be deemed necessary or desirable, to further effect the subordination of this lease to any such mortgage or mortgages. A refusal by the Tenant to execute such instruments will give the Landlord the option of canceling this lease, and the term hereof is hereby expressly limited accordingly.

**Section 25. Condemnation/Eminent Domain.** If the Premises or any portion thereof are taken by eminent domain, or if Landlord sells the Premises to the condemning authority in lieu of condemnation, Landlord may terminate this Lease by written notice. Tenant shall have no claim to any condemnation award or purchase price; all such amounts are assigned to Landlord. Tenant shall execute any instruments necessary to expedite condemnation proceedings or transfer of title, at Landlord's expense, and shall surrender possession to Landlord or its designee. Landlord has no obligation to repair or restore if condemnation occurs during the final twenty-four (24) months of the Term.

**Section 26. Holdover Tenancy.** If Tenant remains in possession of the Premises after the expiration or earlier termination of the Term without Landlord's written consent, such occupancy shall constitute a tenancy at sufferance only. During any such holdover period, Tenant shall pay Rent equal to two hundred -fifty percent (250%) of the highest monthly Base Rent and Additional Rent payable during the Term. Acceptance of any holdover payment shall not be deemed consent to such occupancy nor a waiver of Landlord's right to immediate possession

**Section 27. Defaults and Remedies**

- A. **Events of Default.** Each of the following constitutes an Event of Default: (i) failure to pay rent within five (5) days of written notice; (ii) failure to perform any non-monetary obligation within fifteen (15) days of written notice (or longer if reasonably required and diligently pursued); (iii) abandonment, desertion, or vacancy of the Premises; (iv) Tenant's bankruptcy, insolvency, receivership, or assignment for the benefit of creditors; (v) three (3) or more late rent payments in any twelve-month period; or (vi) levy, execution, attachment, or court order affecting Tenant's interest.
- B. **Landlord's Remedies.** Upon any Event of Default, Landlord may, without further notice except as required by law: (i) terminate this Lease by written notice; (ii) re-enter and repossess the Premises without liability; (iii) remove Tenant and occupants and store or dispose of property at Tenant's expense; (iv) relet the Premises on any terms for any period. Re-entry or reletting shall not constitute termination unless Landlord expressly so states in writing.
- C. **Application of Rents.** Rents received from reletting shall be applied first to costs of reletting (including brokerage, legal fees, and repairs), then to unpaid rent. Tenant shall pay any monthly deficiency and shall remain liable for the present worth of all rent reserved for the remainder of the Term, less net rents received from reletting.
- D. **Cumulative Rights.** All rights and remedies of Landlord under this Lease, at law, or in equity are cumulative and not exclusive. Landlord's failure to enforce strict performance of any condition or covenant, to exercise any option or remedy, or to resort to any recourse in any one or more instances shall not constitute a waiver or relinquishment of such rights for the future, and the same shall remain in full force and effect. Acceptance of rent or any other payment after any default shall not be deemed a waiver of the default or of Landlord's right to pursue any remedy. No waiver shall be effective unless in writing and signed by Landlord.

**Section 28. Attorney's Fees.** In case suit shall be brought for recovery of possession of the leased premises, for the recovery of rent or any other amount due under the provisions of this Lease, or because of the breach of any other covenant herein contained on the part of Tenant to be kept or performed, and a breach shall be established, Tenant shall pay to Landlord all expenses incurred therefore, including reasonable attorneys' fees, and said expenses shall be deemed to be rent and shall be recoverable as additional rent.

**Section 29. Reimbursement of Landlord and Interest.** The Landlord, at Landlord's option, shall have the right to pay any sum or perform any act requiring the expenditure of monies by reason of the failure or neglect of Tenant to perform any of the provisions of this Lease to be performed by the Tenant

hereunder. In the event Landlord shall so elect to make such payments or perform such acts requiring the expenditure of monies, Tenant agrees to pay to Landlord, within ten (10) days after demand, all such sums paid or expended, together with interest thereon at the rate of **ten percent (10%) per annum** or the maximum legal rate from the date of expenditures; such sums to be deemed to be and shall become additional rent hereunder, and collectible as such.

**Section 30. Exercise by Landlord of Rights and Remedies.** No reference in this Lease to any specific right or remedy shall preclude Landlord from exercising any other right or from having any other remedy or from maintaining any action to which it may otherwise be entitled either under this Lease or at law or in equity.

**Section 31. Limitation of Landlord Liability.** Tenant's recourse against Landlord shall be limited to Landlord's interest in the Property. No personal liability shall attach to Landlord or its members, partners, officers, directors, agents, or employees, and Tenant shall have no right to obtain a judgment for money damages or levy upon any assets other than Landlord's equity in the Property. The term "Landlord" as used in this Lease means only the owner of the Premises for the time being. In the event of a sale or transfer of the Premises, the named Landlord shall be entirely freed and relieved of all covenants and obligations under this Lease, and the purchaser or transferee shall be deemed, without further agreement, to have assumed and agreed to perform all obligations of the Landlord hereunder.

**Section 32. Subordination; Attornment; Lender Protections.** This Lease shall be subject and subordinate to any mortgage, deed of trust, or other security instrument now or hereafter encumbering the Property, at Landlord's option. Tenant agrees to attorn to any lender or purchaser at foreclosure and to recognize such party as landlord under this Lease. Tenant agrees to execute, within ten (10) days after request, any commercially reasonable subordination, non-disturbance, and attornment agreement (SNDA) required by any lender. Failure to do so shall constitute a material default, and Tenant hereby appoints Landlord as its attorney-in-fact to execute the same on Tenant's behalf.

**Section 33. Non-Performance by Landlord (Force Majeure).** Tenant's obligation to pay rent and perform its duties under this Lease shall not be affected if Landlord is unable to supply any service or is delayed in performing any work due to causes beyond Landlord's reasonable control, including governmental actions, insurance delays, strikes, labor difficulties, riots, acts of God, fire, supply chain shortages, public health emergencies, or other causes beyond Landlord's control. No such delay shall constitute actual or constructive eviction or entitle Tenant to any abatement of rent.

**Section 34. No Constructive Eviction; No Abatement.** Tenant expressly acknowledges and agrees that no interruption, delay, failure, or reduction in the furnishing of any services, utilities, access, repairs, maintenance, or improvements to the Premises or the Building, whether caused by Landlord, governmental authorities, force majeure events, repairs, alterations, casualty, or otherwise, shall constitute an actual or constructive eviction of Tenant, nor shall the same entitle Tenant to any abatement, reduction, offset, or suspension of Rent or any other sums due under this Lease. Tenant waives any right to claim constructive eviction or to withhold or offset Rent based upon any such condition or circumstance, except to the extent expressly set forth in this Lease.

**Section 35. Validity of Lease.** The terms, conditions, covenants and provisions of this lease will be deemed to be severable. If any clause or provision herein contained is adjudged to be invalid or unenforceable by a court of competent jurisdiction or by operation of any applicable law, it will not affect the validity of any other clause or provision herein, but such other clauses or provision will remain in full force and effect.

**Section 36. No Recording.** Tenant shall not record this Lease or a memorandum or short form thereof without the written consent of Landlord.

**Section 37. Waiver of Trial by Jury.** To the extent permitted by law, the parties waive trial by jury in any action, proceeding, or counterclaim arising out of or connected with this Lease, the Landlord-Tenant relationship, or Tenant's use or occupancy of the Premises. In any proceeding for non-payment of rent or recovery of possession, Tenant shall not interpose any counterclaim, set-off, cross-complaint, or defense of any nature. Tenant shall not be precluded from bringing a separate, independent action against Landlord on any claim it may have, provided such action does not interfere with Landlord's remedies hereunder, including the collection of rent. Tenant shall continue to pay all Base Rent and Additional Rent when due, without deduction, set-off, or abatement, notwithstanding the existence of any claim or cause of action against Landlord.

**Section 38. Notices.** All notices required under the terms of this lease will be given and will be complete by mailing such notices by certified or registered mail, return receipt requested, to the address of the parties as shown at the head of this Lease, or to such other address as may be designated in writing, which notice of change of address will be given in the same manner.

**Section 39. Title and Quiet Enjoyment.** The Landlord covenants and represents that the Landlord is the owner of the Premises herein leased and has the right and authority to enter into, execute and deliver this lease; and does further covenant that the Tenant on paying the rent and performing the conditions and covenants herein contained, will and may peaceably and quietly have, hold and enjoy the Premises for the term aforementioned.

**Section 40. Liens.** If any construction or other liens are created or filed against the Premises by reason of labor performed or materials furnished for the Tenant in the erection, construction, completion, alteration, repair or addition to any building or improvement, the Tenant will, upon demand, at the Tenant's own cost and expense, cause such lien or liens to be satisfied and discharged of record together with any lien claims that may have been filed. Failure to do so, will entitle the Landlord to resort to such remedies as are provided in this Lease for any default of this Lease, in addition to such as are permitted by law.

**Section 41. Liability and Property Insurance.** Tenant shall obtain and maintain: (i) general public liability insurance naming Landlord as additional insured on a primary and non-contributory basis and a waiver of subrogation in favor of the Landlord, with minimum limits of \$2,000,000 per occurrence and \$2,000,000 aggregate for bodily injury, and \$1,000,000 for property damage; and (ii) property insurance on all Tenant improvements, fixtures, equipment, and merchandise for full insurable value against fire, theft, windstorm, hail, explosion, riot, vandalism, malicious mischief, aircraft, vehicles, and smoke. Tenant shall deliver Certificates of Insurance five (5) days prior to occupancy and at least fifteen (15) days before each policy expiration. Failure to maintain or timely provide proof of insurance shall be a material default and shall incur a \$500/month charge until cured. If Tenant fails to provide insurance, Landlord may procure it at Tenant's expense, with immediate reimbursement plus interest. If Tenant does not furnish proof of coverage or allows any required insurance to lapse, Landlord may pay the premiums on such insurance and Tenant shall immediately reimburse Landlord for all amounts so expended, together with interest at the rate provided in this Lease, collectible as additional rent. If for any reason it becomes impossible to obtain fire and other hazard insurance on the building and improvements in an amount, form, and from insurance companies acceptable to Landlord, Landlord may at any time thereafter terminate this Lease upon fifteen (15) days' written notice to Tenant.

**Section 42. Indemnification.** Tenant shall indemnify and hold Landlord harmless from all claims, liabilities, damages, costs, and expenses (including attorneys' fees) arising from: (i) Tenant's use of the Premises; (ii) any breach of this Lease; or (iii) any act or negligence of Tenant or its agents, employees, or invitees, except to the extent caused by Landlord's gross negligence or willful misconduct. Tenant assumes all risk of damage to property or injury to persons in or about the Premises from any cause other than Landlord's gross negligence or willful misconduct and waives all claims against Landlord.

**Section 43. Environmental and Operational Indemnification.** Tenant shall not use, store, or dispose of any hazardous materials in violation of law. Tenant shall indemnify, defend, and hold Landlord harmless from all claims, liabilities, damages, fines, costs, and expenses (including attorneys' fees and remediation costs) arising from Tenant's introduction of hazardous materials or violation of environmental laws. Tenant shall promptly remediate at its expense. This Section survives termination.

**Section 44. Waiver of Subrogation Rights.** Landlord and Tenant each waive, to the extent permitted by applicable law, any and all rights of recovery against the other or their respective agents, employees, or contractors for loss or damage to property to the extent covered by insurance carried or required to be carried under this Lease, except to the extent caused by such other party's willful misconduct. Each party shall use commercially reasonable efforts to obtain waivers of subrogation from its insurance carriers.

**Section 45. Bankruptcy.** If at any time during the Term: (i) a petition in bankruptcy or insolvency is filed by or against Tenant; (ii) Tenant is adjudicated bankrupt or insolvent; (iii) a receiver, trustee, or liquidator is appointed for Tenant or Tenant's estate; (iv) Tenant makes an assignment for the benefit of creditors; or (v) any judgment, execution, levy, attachment, or similar process is issued against Tenant or Tenant's interest in this Lease, then Landlord may, at its option, terminate this Lease upon five (5) days' written notice. All security deposits shall immediately belong to Landlord and shall be applied toward any and all damages incurred by Landlord, whether accrued prior to or subsequent to such event, for the entire unexpired Term..

**Section 46. ISRA Compliance.** Tenant shall, at its own expense, comply with the Industrial Site Recovery Act, N.J.S.A. 13:1K-6 et seq. ("ISRA") to the extent triggered by Tenant's closing of operations, transfer of operations or ownership, or change of ownership, and only as to conditions caused or exacerbated by Tenant and not to pre-existing conditions. Tenant shall remediate to NJDEP standards for the Premises' actual use, and shall not record any institutional or engineering control encumbering title or restricting redevelopment without Landlord's consent, not unreasonably withheld. Tenant shall deliver copies of all ISRA filings and, on twenty (20) days' request, execute any certification Landlord reasonably requires for a sale, financing, or ISRA determination. Should Tenant fail to comply after thirty (30) days' notice, or sooner if NJDEP requires, Landlord may complete the required cleanup at Tenant's expense under Section 29. This Section survives termination..

**Section 47. Entire Contract.** This Lease, together with all exhibits and attachments hereto, contains the entire contract between the parties, with respect to the Premises and supersedes all prior and contemporaneous negotiations, understandings and agreements, whether written or oral. No representative, agent or employee of the Landlord has been authorized to make any representations or promises with reference to the leasing of the Premises or to vary, alter or modify the terms hereof. No additions, changes or modifications, renewals or extensions hereof will be binding unless reduced to writing and signed by the Landlord and the Tenant.

**Section 48. Conformity with Laws and Regulations.** If any provision of this Lease is determined to be invalid or unenforceable under applicable laws or regulations, such provision shall be deemed modified only to the minimum extent necessary to comply with such laws or regulations, and the remainder of this Lease shall remain in full force and effect. Any such modification shall be applied in a manner that most closely reflects the original intent of the parties.

**Section 49. Number and Gender.** In all references herein to any parties, persons, entities or corporations the use of any particular gender or the plural or singular number is intended to include the appropriate gender or number as the text of the within instrument may require. All the terms, covenants and conditions herein contained shall be for and shall inure to the benefit of and shall bind the respective parties hereto, and their heirs, executors, administrators, personal or legal representatives, successors and assigns.

**Section 50. Construction of Lease.** This Lease shall be construed as if it were drafted equally by both Landlord and Tenant, and there shall not be a presumption with regard to interpreting any ambiguities contained herein in favor of or against either party.

**Section 51. Estoppel Certificate.** Tenant shall at any time and from time to time, upon not less than five (5) days prior written notice from Landlord, execute, acknowledge and deliver to Landlord a statement in writing (a) certifying that this Lease is unmodified and in full force and effect (or, if modified, stating the nature of such modification and certifying that this Lease as so modified is in full force and effect), and the date to which the rental and other charges are paid in advance, if any, and (b) acknowledging that there are not, to Tenant's knowledge, any uncured defaults on the part of Landlord hereunder, or specifying such defaults if any are claimed, and (c) setting forth the date of commencement of rents and expiration of the term hereof. Any prospective purchaser or encumbrancer of all or any portion of the real property of which the Premises are a part may rely upon any such statement. If Tenant fails to execute and deliver to Landlord a completed certificate as required under this Section, Landlord may prepare and estoppel certificate based on its books and records, which shall be binding on Tenant.

**Section 52. Corporate Authority.** If Tenant is a corporation, each individual executing this Lease on behalf of said corporation represents and warrants that he or she is duly authorized to execute and deliver this Lease on behalf of said corporation in accordance with the bylaws of said corporation, and that this Lease is binding upon said corporation in accordance with its terms.

**Section 53. Third Party.** The Tenant acknowledges that some or all of the demised Premises may currently be occupied by third-parties prior to the inception of the Lease and that the Landlord may not be able to deliver possession of the Premises to the Tenant by the Lease Commencement Date, in which such case Landlord shall not be subject to any liability for failure to give possession on said date and the validity of the lease shall not be impaired under such circumstances, nor shall the same be construed in any wise to extend the term of this lease, but the rent payable hereunder shall be abated (provided Tenant is not responsible for Landlord's inability to obtain possession or complete any work required) until after owner shall have given Tenant notice that the premises are substantially ready for Tenant's occupancy.

**Section 54. Financial Reporting.** Tenant shall, within thirty (30) days after Landlord's written request, but not more than twice per calendar year, deliver to Landlord current financial statements, including a balance sheet, profit and loss statement, and cash-flow statement for the most recent fiscal year and year-to-date period, certified by Tenant as true and correct. Landlord may also require copies of Tenant's federal income tax returns for the prior year. Tenant's failure to timely provide such financial information shall constitute a material default under this Lease.

**Section 55. Law Governing.** This Lease shall be governed by, construed and enforced in accordance with the laws of the State of New Jersey.

**Section 56. Execution.** This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which shall constitute one and the same instrument.

**SIGNATURES**

**In Witness Whereof**, the parties hereto have hereunto set their hands and seal, or caused these presents to be signed by their proper corporate officers and their proper corporate seal to be hereto affixed, the day and year first above written.

MARION STREET 114 LLC  
(LANDLORD)

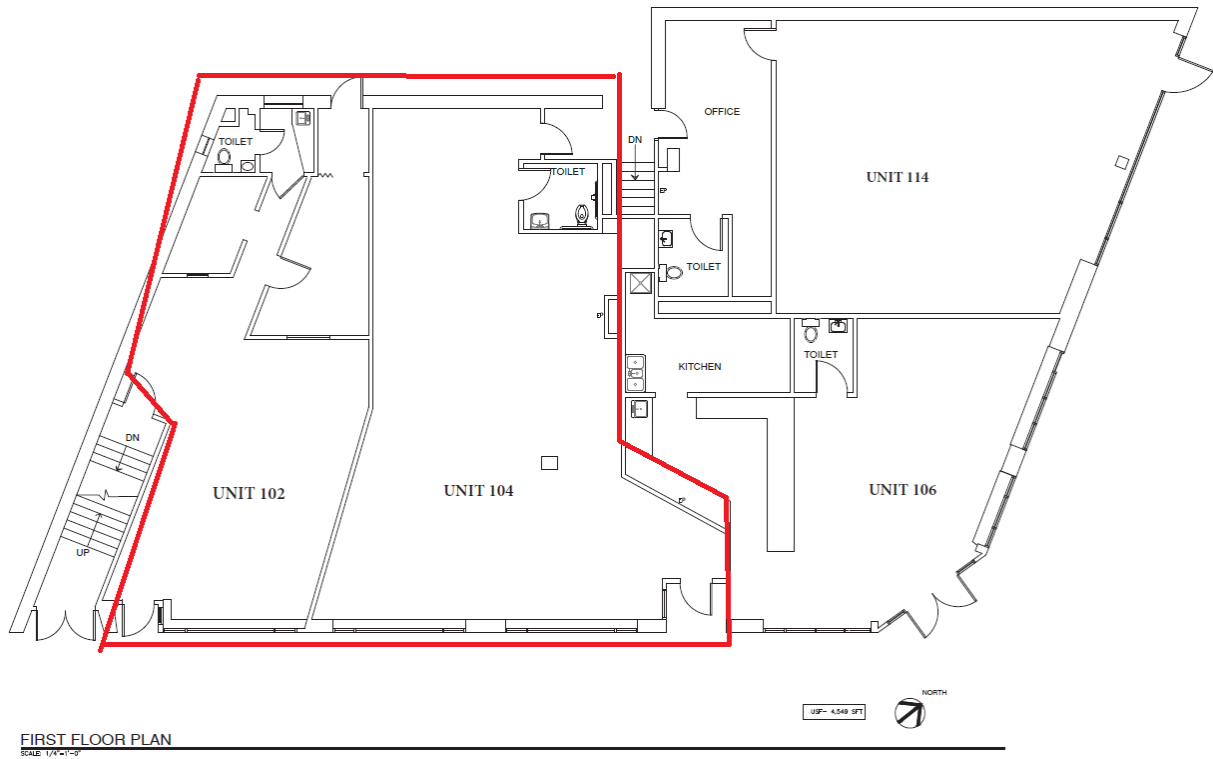
CHEZ ALICE  
(TENANT)

By: \_\_\_\_\_  
**RICHARD ANGEL**  
**Co-Managing Member**

By: \_\_\_\_\_  
**Name:**  
**Title:**



**“Exhibit A”  
Floor Plan of the Premises**



**“Exhibit B”**

**Site Plan**

## **“Exhibit C”**

### **Landlord’s Work**

The premises to be delivered AS-IS. Landlord will ensure that all HVAC systems, plumbing and electrical are delivered in good working order.

**“Exhibit D”**

**Tenant’s Work**

**TENANT FORMS.**

Tenant’s work shall be as set forth in plans provided and approved by the Landlord.

**“Exhibit E”**

**Parking**

**LEAVE FOR TEMPLATE**

## GUARANTY OF LEASE

THIS GUARANTY OF LEASE made this \_\_\_ day of \_\_\_\_\_ 2026 by \_\_\_\_\_,  
presently residing at \_\_\_\_\_.

### WITNESSETH

WHEREAS a certain Lease, dated this \_\_\_ day of \_\_\_\_\_ 2026, herewith will be executed by and between **MARION STREET 114 LLC**, therein and herein referred to as "Landlord" and **CHEZ ALICE** herein referred to as "Tenant", covering certain commercial premises located at **114 Central Ave (also known as 102-104 Quimby St), Westfield, NJ 07090**.

WHEREAS, the Landlord under said Lease requires as a condition to its execution of said Lease that Guarantor unconditionally and absolutely guarantee the full and faithful performance of the obligations of the Tenant under said Lease; and

WHEREAS, the undersigned is desirous that Landlord enter into said Lease with Tenant,

NOW THEREFORE, in consideration of the execution of said Lease by Landlord, Guarantor hereby unconditionally guarantees the full performance of each and all terms, covenants, and conditions of said Lease to be kept and performed by said Tenant, including the payment of all rentals and other charges to accrue thereunder, subject to the duration provisions set forth below. Guarantor further agrees as follows:

**Replace Sec 1 if full guarantee** This Guaranty shall cover all obligations of Tenant under the Lease for the entire Term, including any renewals, extensions, or holdover periods, and shall not expire or terminate until all obligations of Tenant under the Lease have been fully satisfied.

#### 1. Duration of Guaranty.

- a. **Initial Guaranty Period.** Guarantor unconditionally guarantees all of Tenant's obligations under the Lease for a period of twenty-four (24) months commencing on the Rent Commencement Date (the "Initial Guaranty Period"), regardless of whether Tenant is in occupancy or the Lease has been terminated.
- b. **Rolling Guaranty Period.** Following the expiration of the Initial Guaranty Period, Guarantor's liability shall continue on a rolling twelve (12) month basis. At any point during the remaining Term, Guarantor's obligation shall equal the greater of: (i) twelve (12) months of the then-current Base Rent, Additional Rent, and all other charges under the Lease, or (ii) the actual remaining months owed by Tenant of the then-current Base Rent, Additional Rent, and all other charges under the Lease.
- c. **Early Termination or Default.** If the Lease is terminated for any reason prior to the expiration of the Initial Guaranty Period, Guarantor's liability shall not be less than the total Base Rent, Additional Rent, and all other charges that would have been payable through the end of the Initial Guaranty Period. If the Lease is terminated after the Initial Guaranty Period, Guarantor's liability shall not be less than twelve (12) months of the then-current Base Rent, Additional Rent, and all other charges, in addition to any accrued and unpaid amounts as of the date of termination.
- d. **No Release.** Guarantor shall not be released from this Guaranty until all obligations covered hereunder have been fully satisfied and the applicable guaranty period has expired without default.

2. This Guaranty is designed to be comprehensive and enduring, ensuring the full and faithful performance of all Tenant's obligations. It will continue to be fully effective for the Landlord, covering all commitments, even if there are future changes to the Lease, such as extensions, modifications, or renewals. This also applies if the Tenant assigns the Lease, sublets the premises, or undergoes changes in its business structure or ownership. Should the Lease be renewed, extended, or if the Tenant remains in the premises beyond the agreed term, the Guarantor's obligations will likewise extend to these periods and any resulting lease terms. Furthermore, this Guaranty will remain unchanged and fully enforceable even in the event of the Tenant's financial distress, including bankruptcy, reorganization, or dissolution, or if the Lease is disaffirmed or rejected in such proceedings. The Guarantor acknowledges that these events are within the broad scope of this Guaranty and will not diminish their liability, and that specific notice for each such occurrence is not required to maintain this Guaranty's effectiveness. For practical purposes, the Guarantor agrees that the Tenant may act as its agent for receiving official notices related to this Guaranty
3. Landlord may, without notice to Guarantor, assign this Guaranty in whole or in part, and no assignment or transfer of the Lease shall extinguish or diminish the liability of Guarantor.
4. This Guaranty functions as a direct assurance of both payment and performance, rather than just a last resort. Your liability as Guarantor is immediate and unconditional, meaning the Landlord can, at their discretion, seek performance or payment directly from you without first pursuing legal action against the Tenant, obtaining a judgment, or exhausting other remedies or security they may hold. You acknowledge and waive any right to demand that the Landlord first take action against the Tenant, or utilize any security or other credit. This Guaranty will remain fully in effect until all Tenant obligations are completely satisfied. Furthermore, you agree to waive any defense that might arise due to the Tenant's own circumstances, such as a disability, other personal defense, or the cessation of their liability for any reason, or any other typical suretyship defense.
5. Guarantor shall reimburse Landlord for its reasonable attorney's fees and all costs and expenses incurred in any collection, attempted collection, negotiation, or enforcement of the obligations guaranteed hereunder or in enforcing this Guaranty, provided Landlord is the prevailing party in any such action.
6. Guarantor waives notice of any demand by Landlord, notice of any default by Tenant in the payment of rent or any other amount under the Lease, notice of acceptance of this Guaranty, presentment, demand for performance, protest, and all other notices of any kind to which Guarantor might otherwise be entitled.
7. The liability of Guarantor is coextensive with that of Tenant, joint and several, and legal action may be brought against Guarantor and carried to final judgment with or without making Tenant a party thereto.
8. This Guaranty and all terms hereof shall be binding on Guarantor and its heirs, successors, assigns, and legal representatives.
9. Guarantor hereby subordinates all existing or future indebtedness of Tenant to Guarantor to the obligations owed to Landlord under the Lease and this Guaranty. Guarantor shall not exercise any right of subrogation, reimbursement, or contribution against Tenant until all obligations under the Lease have been fully satisfied; however, if Guarantor makes a payment to Landlord to cure a specific Tenant

default, Guarantor shall be immediately entitled to seek reimbursement from Tenant for that specific amount.

10. Upon Landlord's written request, but not more than once per calendar year, Guarantor shall deliver to Landlord current financial statements certified as true and correct. Failure to timely provide such information shall constitute a default under this Guaranty.
11. The Lease and this Guaranty shall be governed by, interpreted under, and enforced in accordance with the laws of the State of New Jersey. Guarantor consents to the exclusive jurisdiction of the courts of the State of New Jersey, County of Union, for any action arising hereunder.
12. The use of the singular herein shall include the plural. The obligations of two or more guarantors shall be joint and several. The terms and provisions of this Guaranty shall be binding upon and inure to the benefit of the respective successors and assigns of the parties herein named.

**IN WITNESS WHEREOF**, the undersigned has caused this Guaranty to be executed as of the date set forth on page one of this Guaranty of Lease.

\_\_\_\_\_  
**Guarantor**

STATE OF NEW JERSEY,  
COUNTY OF \_\_\_\_\_,

I CERTIFY that on this \_\_\_ day of \_\_\_\_\_ 2026 by \_\_\_\_\_, personally came before me and acknowledged under oath, to my satisfaction, that he is the person named above and personally signed this document; and signed, sealed and delivered this document as his voluntary act and deed for the uses and purposes therein expressed.

\_\_\_\_\_  
NOTARY PUBLIC